

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 12
Honorable Nahal Iravani-Sani, Presiding**

Courtroom Clerk, Ryan Nguyen
191 North First Street, San Jose, CA 95113
Telephone: (408) 882-2230

DATE: 04/17/2026 TIME: 9:00 A.M. and 9:01 A.M.

Line 2	25CV457154	Shaohe Xu v. Qui and Zhao	MOTION TO WITHDRAW AS ATTORNEY Attorney Shanshan Zou, attorney for Plaintiff moves under Code of Civil Procedure 284(2) for an Order to Be Relieved as Counsel. Notice is Proper. No Opposition received. As the Motion complies with applicable law and is duly served, the Motion will be granted following the upcoming Demurrer scheduled on April 29, 2026. (The Court notes Mr. Zou has already filed an Opposition to the Demurrer.) The Court will sign the proposed order that has already been filed after the April 29, 2026 court date.
Line 3	25CV456053	Sudhanshy Juneja v. Lavan Construction	RETURN OF WARRANT/ ORDER OF EXAMINATION Bench Warrant for Morin Cyrus Poudat was ordered on January 14, 2026

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Calendar Line 1

Case Name: *Tina Boales v. City of San Jose*

Case No.: 24-CV-449536

Defendant City of San Jose (“City”) demurs to the first, second, and third causes of action in the fourth amended complaint (“4AC”) filed by plaintiff Tina Boales (“Plaintiff”), a self-represented litigant.

City’s Request for Judicial Notice

The City’s request for judicial notice is GRANTED. (See Evid. Code, § 452, subd. (h); see also *Holland v. Morse Diesel Internat., Inc.* (2001) 86 Cal.App.4th 1443, 1447 [court may take judicial notice of exhibits attached to the complaint].)

First Cause of Action: Disparate Treatment

The demurrer to the first cause of action is OVERRULED.

“FEHA proscribes two types of disability discrimination: (1) discrimination arising from an employer’s intentionally discriminatory act against an employee because of his or her disability (referred to as disparate treatment discrimination), and (2) discrimination resulting from an employer’s facially neutral practice or policy that has a disproportionate effect on employees suffering from a disability (referred to as disparate impact discrimination).” (*Featherstone v. Southern California Permanente Medical Group* (2017) 10 Cal.App.5th 1150, 1160 (*Featherstone*).)

As relevant here, “[t]o establish a prima facie case for disparate treatment discrimination, plaintiff must show (1) she suffers from a disability, (2) she is otherwise qualified to do her job, (3) she suffered an adverse employment action, and (4) the employer harbored discriminatory intent.” (*Featherstone, supra*, 10 Cal.App.5th at p. 1161.)

The City argues there is no claim stated for disparate treatment as Plaintiff fails to allege she was qualified to do the essential functions of her job as a lifeguard, namely rescuing swimmers in distress under all circumstances. In particular, the City’s primary safety concern was whether Plaintiff could “lift, push, or pull anyone out of a pool weighing more than 30 lbs.” (See 4AC at p. 5:19-22; Reply at p. 1:3-6, 23-24.) Plaintiff alleges that, despite her disability, she could pull/push anyone from a pool, regardless of weight thus qualifying her for the lifeguard position. (4AC at p. 6:6-8.) Even though the City may disagree with these allegations, they must be accepted as true on demurrer. (See *Olson v. Toy* (1996) 46 Cal.App.4th 818, 823 [for purposes of demurrer, we accept these allegations as true]; see also *Nolte v. Cedars-Sinai Medical Center* (2015) 236 Cal.App.4th 1401, 1406 [“Because a demurrer tests only the legal sufficiency of the pleading, we accept as true even the most improbable alleged facts, and we do not concern ourselves with the plaintiff’s ability to prove its allegations.”].)

Second Cause of Action: Failure to Accommodate

The demurrer to the second cause of action is OVERRULED.

FEHA makes it unlawful for an employer “to fail to make reasonable accommodation for the known physical...disability of an applicant or employee” except where the employer demonstrates that an accommodation would “produce undue hardship...to its operation.” (Gov’t Code, § 12940, subd. (m).) A “reasonable accommodation” is any “modification or adjustment to the workplace that enables the employee to perform the essential functions of the job held or desired.” (*Scotch v. Art Institute of California* (2009) 173 Cal.App.4th 986, 1010.)

“The essential elements of a failure to accommodate claim are: (1) the plaintiff has a disability covered by the FEHA; (2) the plaintiff is a qualified individual (i.e., he or she can perform the essential functions of the position); and (3) the employer failed to reasonably accommodate the plaintiff’s disability. [Citation.]” (*Wilson v. County of Orange* (2009) 169 Cal.App.4th 1185, 1192.)

Reasonable accommodations may include “[j]ob restricting, part-time or modified work schedules, reassignment to a vacant position...and other similar accommodations for individuals with disabilities.” (Gov’t Code, § 12926, subd. (p).) “FEHA does not obligate an employer to choose the best accommodation or the specific accommodation of a disabled employee or applicant seeks. It requires only that the accommodation chosen be ‘reasonable.’ [Citation.]” (*Raine v. City of Burbank* (2006) 135 Cal.App.4th 1215, 1222.)

The City first argues there is no claim stated as Plaintiff fails to allege she can perform the essential functions of the lifeguard position. The court has considered and rejected this argument for reasons explained above. The City also contends there are no facts showing it failed to accommodate Plaintiff’s disability as the City encouraged her to find an alternative job opening where she met the minimum qualifications. (See 4AC at p. 8:8-13.) But, “an employer who knows of the disability of an employee has an affirmative duty to make known to the employee other suitable job opportunities with the employer and to determine whether the employee is interested in, and qualified for, those positions.” (*Prilliman v. United Air Lines, Inc.* (1997) 53 Cal.App.4th 935, 950-951.) Here, the City merely asked Plaintiff to find an alternative job opening. The City did not satisfy its affirmative duty to offer Plaintiff suitable job opportunities within City departments to determine whether she was interested in or would qualify for those positions.

Third Cause of Action: Discriminatory Hiring Practices

The demurrer to the third cause of action is OVERRULED.

To establish a prima facie case of discriminatory hiring, a plaintiff must show: (1) she has a disability; (2) she applied and was qualified for a job which the employer was seeking applicants; (3) that, despite her qualifications, she was rejected; and (4) that, after her rejection, the position remained open and the employer continued to seek applicants from persons of complainant’s qualifications. (*Walker v. Blue Cross of California* (1992) 4 Cal.App.4th 985, 998.)

As to the third cause of action, the City reiterates its prior argument that Plaintiff is unable to perform the essential functions for the lifeguard position. Again, the court has considered and rejected this argument for reasons articulated above.

Disposition

The City's request for judicial notice is GRANTED.

The demurrer to the first, second, and third causes of action for failure to state a valid claim is OVERRULED.

The court will prepare the Order.

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